CHERRY HILL COURT CONDOMINIUM ASSOCIATION, INC.

BYLAWS

BYLAWS

OF

CHERRY HILL COURT CONDOMINIUM ASSOCIATION, INC.

ARTICLE I
Name, Seal and Offices

Section 1. Name: The name of this corporation is Cherry Hill Court Condominium Association, Inc., ("Association").

Section 2. Seal: The seal of the Association shall be circular in form and shall bear the words "Corporate Seal". The Executive Board may change the form of the seal or the inscription thereon at its pleasure.

Section 3. Office: The principal office of the Association shall be located at 1209A Chapel Street, New Haven, Connecticut , or at such other place as the Executive Board may from time to time designate.

Section 4. Definitions: The terms used herein which are defined by the Common Interest Ownership Act (Public Act 83-474) of the Connecticut General Statutes, as amended by Public Act 84-472 of the Connecticut General Statutes (the "Act") shall have the same meaning given them by said Act; and all su ch definitions are incorporated herein and made a part hereof as though fully set forth herein.

ARTICLE II
Purpose

The purpose shall be to operate and maintain the property described in Article III, Section 1 hereof in accordance with the provisions set forth in the Certificate of Incorporation of the Association.

ARTICLE III
Plan of Unit Ownership

Section 1. Unit Ownership: The property is located on Quinnipiac Avenue , in the Town of New Haven, County of New Haven and State of Connecticut, said property being the property submitted to the provisions of the Act pursuant to the Declaration (the "Declaration") recorded in the office of the Town Clerk of said Town of New Haven simultaneously herewith (the "Property"). The name of the Property, as submitted to the provisions of said Act, is Cherry Hill Court Condominiun (the "Common Interest Community"). The term "Declarant", as used in these Bylaws shall mean Nutmeg Housing Development Corporation, and any successor thereof.

Section 2. Applicability of Bylaws: The provisions of these Bylaws are applicable to the Property and to the use and occupancy thereof.

Section 3. Personal Application: All present and future Unit Owners, mortgagees, lesses, and occupants of the Units and their employees, and any other person who may use the facilities of the Common Interest Community in any manner are subject to these Bylaws, the Declaration, and the Rules and Regulations established by the Executive Board as hereinafter set forth. The acceptance of a deed or conveyance or the entering into of a lease or the act of occupancy of a Unit shall constitute an agreement that these Bylaws, the Rules and Regulations, and the provisions of the Declaration, as they may be amended from time to time, are accepted, ratified, and shall be completed with.

Section 4. Membership: Each Unit Owner or Owners by virtue of their holding title to a Unit shall become a member of the Association, a non-stock corporation organized under the laws of the State of Connecticut, and shall hold one membership for each Unit so held by said Unit Owner or Owners. The votes allocated to each residential Unit in the Common Interest Community are set forth in the Declaration.

ARTICLE IV
Executive Board

Section 1. Number and Qualifications; Termination of Declarant Control: The affairs of the Common Interest Community shall be governed bythe Association, which in turn shall be governed by an Executive Board consisting of three (3) persons, each of whom shall have one vote. The majority of the members of the Executive Board, excepting those elected by the Declarant, shall be Unit Owners. If any Unit is owned by a partnership or corporation, any officer, partner, or employee of the Unit Owner shall be eligible to serve as an Executive Board member. The members of the Executive Board shall be elected by the Unit Owners, except for those appointed by the Declarant. The terms of at least one-third (1/3rd) of the members of the Executive Board shall expire annually. The Declaration shall goven appointment of members of the Executive Board during he period of Declarant control. At the termination of the period of Declarant control of the Association, as provided in the Declaration, the Unit Owners shall elect, in accordance with the provisions of Section 46 (f) of the Act, one (1) member of the Executive Board to serve for a period of three (3) years, one (1) member of the Executive Board to serve for a period of two (2) years, and one (1) member of the Executive Board to serve for a period of one (1) year. At the expiratio of the inital term of office of each of these members of the Executive Board, his successor shall be elected to serve for a period of three (3) years. The members of the Executive Board shall hold office until

their successors have been elected or until the member is no longer a Unit Owner. At any time after Unit Owners other than the Declarant are entitled to elect a member of the Exective Board, the Association shall call and give not less than ten (10) nor more than sixty (60) days notice of a meeting of the Unit Owners for this purpose. Such meeting may be called and the notice given by any Unit Owner if the Associaition fails to do so.

Section 2. Powers and Duties: The Executive Board may act in all instances on behalf of the Association except as provided in the Declaration, the Bylaws or the Act. The Executive Board shall have the powers and duties necessary for the administration of the affiars of the Association and of the Common Interest Community, which shall include, but not be limited to, the following:

(a) Adopted and amend Bylaws and Rules and Regulations subject to the limitations as set forth in the Declaration and below;

(b) Adopt and amed budgets for revenues, expenditures and reserves and collect assessments for Common Expenses from Unit Owners;

(c) Hire and discharge managing agents;

(d) Hire and discharge other employees, agents and independent contractors;

(e) Institute, defend or intervene in litigation or administrative proceedings in its own name on behalf of itself or two or more Unit Owners on matters affecting the Common Interest Community;

(f) Make contracts and incur liabilities;

(g) Regulate the use, maintenance, repair, replacement and modification of Common Elements;

(h) Cause additional improvements to be made as a part of the Common Elements;

(i) Acquire, hold, encumber and convey in its own name any right, title or interest to real property or personal property, but ... Common Elements ... may be conveyed or subject to a security interest only pursuant to (Section 55) of the Act;

(j) Grant easements, leases, licenses and concessions for no more than one (1) year through or over the Common Elements;

(k) Impose and receive any payments, fees or charges for the use, rental or operation of the Common Elements, other than

Limited Common Elements described in (Subsection (2) and (4) of Section 22) of the Act, and for services provided to Unit Owners;

(l) Impose charges or interest or both for late payment of assessments and, after Notice and levy reasonable fines for violations of the Declaration, Bylaws, Rules and Regulations of the Association;

(m) Impose reasonable charges for the preparation and recordation of amendments to the Declaration, resale certificates required by (Section 71) of the Act or statements of unpaid assessments;

(n) Provide for the indemnification of its officers and Executive Board and maintain Directors' and officers' liability insurance;

(o) Assign its right to future income, including the right to receive Common Expense assessments, subject to the limitations set forth in the Declaration;

(p) Exercise any other powers conferred by the Declaration or Bylaws;

(q) Exercise all other powers that may be exercised in this state by legal entities of the same type as the Association;

(r) Exercise any other powers necessary and proper for the governance and operation of the Association;

(s) By resolution, establish committees, permanent and standing, to perform any functions above as specifically delegated in the resolution establishing the committee. Any committee must maintain and publish notice of its actions to Unit Owners and the Executive Board. However, actions taken by a committee may be appealed to the Executive Board by any Unit Owner within forty-five (45) days of publication of such notice, and such notices, and such committee action must be ratified, modified or rejected by the Executive Board at tis next regular meeting; and

(t) Establish and provide rules and regulations for all committee.

Section 3. Management: The Executive Board may employ or enter into a contract or agreement with a manager for the Common Interest Community, at such compensatio or consideration as is established by the Executive Board, to perform such duties and services as the Executive Board shall authorize. The Executive Board may authorize such manager to perform the duties listed in sub-sections (d), (f) and (g) of Section 2 of this Article IV and other duties consistent

therewith, but shall not delegate to the manager the powers of the Executive Board set forth in sub-sections (a), (b), (c), (e), (h), (i), (j), (k), (l), (m), (n), (o), (p), (q), (r), (r), (s) or (t) of said Section 2.

Section 4. Removal of Members of the Executive Board: At a regular or special meeting of the Unit Owners at which a quorum is present, any one or more of the members of the Executive Board other than a member appointed by the Declaratn may be removed with or without cause by a two-thirds (2/3rds) vote of the Unit Owners present and entitled to vote, following notice thereof in the call of the meeting, and a successor may then and there or thereafter be elected to fill the vacancy this created.

Section 5. Vacancies: Vacancies in the Executive Board caused by any reason other than the removal of a member by a vote of the Unit Owners, may be filled as follows: at a regular or special meeting of the Executive Board held for that purpose promptly after the occurrence of anys uch vacancy, even though the members present at such meeting may constitute less than a quorum, (a) as to vacancies of Executive Board, (b) as to vacancies of members whom the Declarant has the right to appoint, by the Declarant. Each person so elected or appointed shall be a member of the Executive Board for the remainder of the term of the member so replaced, or until his successor shall be duly elected.

Section 6. Organization Meeting: The first meeting of the Executive Baord following each annual meeting of the Unit Owners shall be held within ten (10) days thereafter at such time and place as shall be fixed by the Unit Owners at the meeting which such Executive Board shall have been elected. No notice shall be necessary to the newly elected Executive Board members in order to legally constitute such meeting, provided a majority of the members shall be present thereat.

Section 7. Regular Meetings: Regular meetins of the Executive Board may be held at such time and place as shall be terminated from time to time by majority of the members of the Executive Board, but at least two (2) such meetings shall be held during each calendar year. Notice of regular meetings of the Association to each member personally or by mail or telegraph at least three (3) days prior to the day of the meeting.

Section 8. Special Meetings: Special meetings of the Executive Board may be called by the President or Secretary of the Association on three (3) days' notice to each member of the Executive Board, given personally or by mail or telegraph, which notice shall state the time, place and purpose of the meeting. Special meetings of the Executive Board shall be called by the President or Secretary of the Association in like manner and on like notice on the written request of at least two (2) members of the Executive Board.

Section 9. Waiver of Notice: Any member of the Executive Board may at any time waive notice of any meeting of the Executive Board in writing, and such waiver shall be deemed equivalent to the giving of such notice. Attendance by a member of the Executive Board at any meeting of the Executive Board shall constitute a waiver of notice by him of the time and place thereof. If all memebers of the Executive Board are present at any meeting of the Executive Board, no notice shall be required and any business may be transacted at such a meeting.

Section 10. Quorum of the Executive Board: At all meetings of the Executive Board a majority of the members thereof shall constitute a quorum for the transaction for business, and the votes of a majority of the members of the Executive Board present at a meeting at which a quorum is present shall constitute the decision of the meeting. if, at any meeting of the Executive Board there shall be less than a quorum present, a majority of those present may adjourn the meeting.

Section 11. Fidelity Bonds: The Executive Board shall obtain adequate fidelity bonds for all officers, employees and agents of the Association handling or responsible for Association funds. The premiums on such bonds shall constitute a Common Expense.

Section 12. Compensation: No member of the Executive Board shall receive any compensation from the Association for acting as such.

Section 13. Liability of the Executive Board: The members of the Executive Board and the officers shall not be liable to the Association or the Unit Owners for any mistake of judgment, negligence, or otherwise, except for their own individual willful misconduct of bad faith. The Association shall indemnify and hold harmless, to the extent permitted by law,. each of the members of the Executive Board and each of the officers against all liability arising out of their conduct on behalf of the Association, unless such conduct shall have been in bad faith. It is intended that the members of the Executive Board, and the officers shall have no personal liability with respect to any contract made by them on behalf of the Association (except as Unit Owners). It is also intended that the liability of any Unit Owner arising out of any contract made by the Association or out of the aforesaid indemnity in favor of the Executive Board and the officers shall be limited to such proportion of the total liability thereunder as his interest in the Common Elements bears to the interest of all Unit Owners in the Common Elements.

Section 14. Fiscal Year: The Executive Board shall establish a fiscal year.

Section 15. Consent to Corporate Action: If all members of the Executive Board or all memebers of a committee established for such purposes, as the case may be, severally or collectively consent in writing to any action taken or to be taken by the Association, and the number of the members of the Executive Board or committee constitutes a quorum for such action, such action shall be a valid corporate action as though it had been authorized at a meeting of the Executive Board or the committee, as the case may be. The Secretary shall file such consents with the minutes of the meetings of the Executive Board.

Section 16. Standards of Care: In the performance of their duties, the officers and members of the Executive Board are required to exercise (1) if appointed by the Declarant, the care required fiduciaries of the Unit Owners and (2) if elected by the Unit Owners, ordinary and reasonable care.

ARTICLE V
Unit Owners as Members

Section 1. Eligibility: The ownership of a Unit in the Common Interest Community shall entitle the Owner or Owners thereof to one membership in the Association. Such memebership shallbe automatically transferred upon the conveyance of any such Unit. Such membership shall entitle the holder thereof to vote on all matters properly submitted to the Unit Owners in accordance with these Bylaws, the Declaration and the Act. However, such membership shall not entitle the holder thereof to elect any of the members of the Executive Board until the requirements of the Declaration and the Act have been met.

Section 2. Voting: A majority of the total votes cast at a meeting at which a quorum is present shall be binding upon all Unit Owners for all purposes except where a higher percentage is required by these Bylaws, the Declaration, or pursuant to any provision of the Act.

Section 3. Votes in the Event of Multiple Ownership of a Unit: if any one of several owners of a Unit is present at a meeting of the Association, that owner is entitled to cast all the vots allocated to that Unit. If more than one of the owners are present, the votes allocated to that Unit may be cast only in accordance with the agreement of a majority in interest of the owners. There is a majority agreement if any one of the owners casts the votes allocated to that Unit without protest being made promptly to the person presiding over the meeting by any of the other owners of the Unit.

Section 4. Annual Meetings: Annual meetings of the Unit Owners shall be held at such time as the Executive Bo9ard may designate. At such meeting there shall be elections by ballot of the Unit Owners, Executive Board members in accordance with the provisions

of Article IV, Section 1 of these Bylaws, and Unit Owners may also transact such other business as may properly come before the meeting.

Section 5. Place of Meetings: Meetings of the Unit Owners shall be held at the principal office of the Association or such other suitable place convenient to the Unit Owners as may be designated by the President of the Association.

Section 6. Budget Meetings: Meetings to consider the proposed budget shall be called in accordance with the Declaration. The budget may be considered at annua or special meetings called for other purposes as well.

Section 7. Special Meetings: Special meetings of the Association may be called by the President, a majority of the Executive Board, or by Unit Owners having twenty (20%) percent of the votes in the Association.

Section 8. Notice of Meetings: Not less than ten (10) nor more than sixty (60) days in advance of any meeting, the Secretary or other officer specified in the Bylaws shall cause notice to be hand-delivered or sent postage prepaid by United States mail to the mailing address of each Unit or to any other mailing address designated in writing by the Unit Owner. The notice of any meeting shall state the time and place of the meeting and the items on the agenda, including the general nature of any proposed amendment to the Declaration or Bylaws, any budget changes and any proposal to remove an officer or member of the Executive Board. No action shall be adopted at a meeting except as stated in the notice.

Section 9. Waiver of Notice: Any Unit Owner may at any time waive notice of any meetings of the Unit Owners in writing, and such waiver shall be deemed equivalent to the giving of such notice.

Section 10. Adjourned Meetings: If any meeting of Unit Owners cannot be held because a quorum has not attended, a majority of the Unit Owners who are present at such meeting, either in person or by proxy, may adjourn the meeting to another time.

Section 11. Order of Business: The order of business at all meetings of the Unit Owners shall be as follows, to the extent required:

(a) Roll call.
(b) Proof of notice of meeting or waiver of notice.
(c) Reading of minutes of preceding meeting.
(d) Report of officers.
(e) Report of Executive Board.

(f) Report of committee.
(g) Election of members of the Executive Board (when required).
(h) Ratification of Budget (if required).
(i) Unfinished business.
(j) New Business.
(k) Adjourment.

Section 12. Parlimentary Procedure: At all meetings of the Unit Owners or of the Executive Board, **Robert's Rules of Order,** as to such date amended, shall be followed, except that in the event of conflict, these Bylaws or the Declaration, as the case may be, shall prevail.

Section 13. Quorum: Except as otherwise provided in these Bylaws, the Unit Owners present in person or by proxy, at any meeting of Unit Owners shall constitute a quorum at all meetings of the Unit Owners.

Section 14. Proxies: Votes allocated to a Unit may be cast pursuant to a proxy duly executed by a Unit Owner. If a Unit is owned by more than one person, each owner of the Unit may vote for egister protest to the casting of votes by the other owners of the Unit through a duly executed proxy. A Unit Owner may revoke a proxy give pursuant to this section only by actual notice of revocation to the person presiding over a meeting of the Association. A proxy is void if it is not dated or purports to be revocable without notice. A proxy terminates one year after its date unless it specifies a shorter term.

Section 15. Votes of Corporations or Business Trusts: The vote of a corporation or business trust may be cast by any officer of such corporation or business trust in the absence of express notice of the designation of a specific person by the Executive or Bylaws of the owing corporation or business trust. The vote of a partnership in the absence of express notice of the designation of a specific person by the owning partnership. The moderator of the meeting may require reasonable evidence that a person voting on behalf of a corporation, partnership or business trust owner is qualified so to vote.

Section 16. Votes of Association: No votes allocated to a Unit owned by the Association may be cast.

Section 17. Consent to Corporate Action: If all the Unit Owners severally or collectively consent in writing to any action taken or to be taken by the Association, such action shall be a valid corporate action as though it had been authorized at a meeting of the Unit Owners. The Secretary shall file such consents with the minutes of the meetings of the Unit Owners.

ARTICLE VI
Officers

Section 1. Designation: The principal officers of the Association shall be the President, the Secretary and the Treasurer, all of whom shall be elected from the Unit Owners by the Executive Board. Any individual Unit Owner or any officer or employee of a corporation, partnership or fiduciary Unit Owner shall be eligible for such election. The Executive Board may appoint a Vice President, and Assistant Secretary and such other officers as in its judgment may be necessary, who need not be Unit Owners. Any two or more offices may be held by the same person, except the offices of the President and Secretary. The President must be a member of the Executive Board.

Section 2. Election of Officers: The officers of the Association shall be elected annually by the Executive Board at their organization meeting, and shall hold office at the pleasure of the Executive Board.

Section 3. Removal of Officers: Upon the affirmative vote of a majority of the members of the Executive Board, any officer may be removed, either with or without cause, and his successor elected at any regular meeting of the Executive Board, or at any special meeting of the Executive Board called for such purpose.

Section 4. President: The President shall be the chief executive officer of the Association. He shall preside at all meetings of the Unit Owners and the Executive Board and shall have all the general powers and duties which are usually vested in the office of the President of a nonstock corporation organized under the laws of the State of Connecticut, including, but not limited to, the power to appoint such committees from time to time as he may, in his discretion, decide are appropriate to assist in the conduct of the affairs of the Association. The President may cause to be prepared and may execute amendments to the Declaration and Bylaws on behalf of the Association, following authorization oby the approval of the particular amendment as applicable.

Section 5. Vice President: The Vice President shall take the place of the President and perform his duties whenever the President shall be absent or unable to act. If neither the President nor the Vice President is able to act, the Executive Board shall appoint some other member of the Executive Board to act in the place of the President on an interim basis. The Vice President shall also perform such other duties as shall, from time to time, de assigned to him by the Executive Board or by the President.

Section 6. Secretary: The Secretary shall keep the minutes of all meetings of the Unit Owners and of the Executive Board and shall have charge of such books and papers as the Executive Board

and these Bylaws may direct. He shall give all notices required by the Bylaws unless otherwise provided, and he shall, in general, perform all the duties incident to the office of Secretary of a nonstock corporation organized under the laws of the State of

Connecticut. The Secretary may cause to be prepared and may execute amendments to the Declaration and Bylaws on behalf of the Association following authorization by the approval of the particular amendment as applicable.

Section 7. Treasurer: The Treasurer shall have responsibility for Association funds and securities and shall keep the financial records and books of account in books belonging to the Association. He shall be responsible for the deposit of all monies and other valuable effects in the name and to the credit of the Association in such depositories as may, from time to time, be designated by the Executive Board, and he shall, in general, perform all the duties incident ot hte office of Treasurer of a nonstock corporation organized under the laws of the State of Connecticut.

Section 8. Signatories to Documents: Except as provided in Section 4 and 6 of this Article VI and in the Declaration, all agreements, contracts, deeds, leases, checks and other documents of the Association shall be executed by any officer of the Association or by such other person or persons as may be designated by the Executive Board. Vouchers for the payment of Association funds shall be approved by the Treasurer before payment.

Section 9. Compensation of Officers: No officer shall receive any compensation from the Association for acting as such.

Section 10. Resale Certificates and Statements of Unpaid Assessments: The Treasurer, Assistant Treasurer or a manager employed by the Association, or, in their absence, any officer having access to the books and records of the Associatino, may prepare, certify, and execute resale certificates in accordance with Section 71 of the Act and Statements of unpaid assessments in accordance with Section 59(h) of the Act.

The Association may charge a reasonable fee for preparing resale certificates and statements of unpaid assessments. The amount of this fee and the time of payment shall be established by resolution of the Executive Board. The Association may refuse to furnish resale certificates and statements of unpaid assessments until the fee is paid. Any unpaid fees may be assessed as a Common Expense against the Unit for which the certificate or statement is furnished.

ARTICLE VII
Operation of the Common Interest Community

Section 1. Abatement and Enjoinment of Violations by Unit

Owners: The violation of any of the Rules and Regulations adopted by the Executive Board or the breach of any provision of the Instruments, shall give the Executive Board the right, subject to Notice and Hearing, except in case of an emergency, in addition to any other rights set forth in these Bylaws:

(a) to enter the Unit in which, or as to which, such violation or breach exists and the summarily abate and remove, at the expense of the defaulting Unit Owner, any structure, thing or conditino except for additions or alterations of a

permanent nature that may exist therein contrary to the intent and meaning of the provisions hereof, and the Executive Board shall not thereby deemed liable for any manner of trespass; or

(b) to enjoin, abate or remedy by appropriate legal proceedings, either at law or in equity, the continuance of any such breach.

Section 2. Fine for Violation: By resolution, following Notice and Hearing, the Executive Board may levy a fine of up to twenty-five ($25.00) dollars per day for each day that a violation of the Instruments or Rules and Regulations persists after such Notice and Hearing.

ARTICLE VIII
Records

Section 1. Records and Audits: The Association shall maintain accounting records, which shall include:

(a) A record of all receipts and expenditures;

(b) An account for each Unit which shall designate the name and address of each owner, the amount of each Common Expense assessment, the dates on which the assessment becomes due, the amounts paid on the account, and the balance due;

(c) A record of the actual cost, irrespective of discounts and allowances of the maintenance of the Common Elements;

(d) An accurate account of the current balance in the reserve for replacement and for emergency repairs.

The financial records shall be maintained and audited in accordance with the Declaration. The cost of the audit shall be a Common Expense unless otherwise provided in the Instruments.

Section 2. Examination: All records maintained by the Association or by the manager shall be available for examination

and copying by any Unit Owner, by any mortgagee of a Unit, or by any of their duly authorized agents or attorneys, at the expense of the person examining the records, during normal business hours and after reasonable notice.

Section 3. Statutory Records: The Association shall keep financial records sufficiently detailed to enable the Association to comply with Section 71 of the Act as follows:

(a) An account for each Unit showing the amounts of monthly Common Expense assessments currently due and payable from each Unit Owner.

(b) An account for each Unit Owner showing any other fees payable by each Unit Owner.

(c) A record of any capital expenditures anticipated by the Association for the current and next succeeding fiscal year.

(d) A record of the amount of any reserves for capital expenditures.

(e) The current operating budget adopted pursuant to Section 58(a) of the Act and ratified pursuant to the procedures of Section 46(c) of the Act.

(f) A record of any unsatisified judgment against the Association and the existence of any pending suits in which the Association is a defendant.

(g) A record of insurance coverage provided for the benefit of Unit Owners.

Section 4. Form Resale Certificate: The Executive Board shall adopt a form resale certificate to satisfy the requirement of Section 71 of the Act.

ARTICLE IX
Amendment of Bylaws

These Bylaws may be amended only by vote of two-third (2/3rds) of the members of the Executive Board, following Notice to all Unit Owners, at any meeting duly called for such purpose.

ARTICLE X
Miscellaneous

Section 1. Notices: All notices to the Association or the Executive Board shall be delivered to the office of the manager, with a copy delivered to the office of the Association, or if there is no manager, to the office of the Association, or to such other address as the Executive Board may hereafter designate from time to time, by notice in writing to all Unit Owners and to all mortgagees of Units. Except as otherwise provided, all notices to any Unit Owner shall be sent to his address as it appears in the records of the Association. All notices to mortgagees of Units shall be sent, except where a different manner of notice is specified elsewhere in the Instruments, by registered or certified mail to their respective addresses, as designated by them from time to time, in writing, to the Executive Board. All notices shall be deemed to have been given when received.

Section 2. Waiver: No restriction, condition, obligation, or provisions contained in these Bylaws shall be deemed to have been abrogated or waived by reason of any failure to enforce the same, irrespective of the number of violations or breaches which may occur.

Section 3. Captions: The captions herein are inserted as a matter of convenience and for reference, and in no way define, limit, or described the scope of these Bylaws or the intent of any provision thereof.

Section 4. Gender: The use of the masculine gender in these Bylaws shall be deemed to include the feminine gender, and the use of singular shall be deemed to inlcude the plural, and vice versa, when the context so requires.

Section 5. Invalidity: The invalidity of any part of these Bylaws shall not impair or affect in any manner the validity, enforceability or effect of the balance of these Bylaws.

Section 6. Conflict: These Bylaws are set forth to comply with the requirements of Chapter 600 of the Connecticut General Statutes, revision fo 1958, as amended, and the Act. In the event of any conflict between these Bylaws and the provisions of such Statutes or the Declaration, the provisions of such Statutes or of the Declaration, as the case may be, shall control.

Certified to be the Bylaws adopted by consent of the Incorporator of Cherry Hill Court Condominium Association, Inc., dated this day of , 19 .

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Incoporator